Even at this stage, the lawyer representing the Chandigarh administration suggested that the matter could be put to rest if Gill expressed regret for his conduct.[22] The court chose not to engage with this suggestion, leaving it to the parties to decide whether they wished to compromise in this way.

The two-judge panel of the Supreme Court (comprising Justices Anand and Mukherjee) held that the high court committed a 'gross error of law' in quashing the complaints.[23] Assuming Bajaj's allegations were correct, it was clear that Gill outraged her modesty for the purposes of Sections 354 and 509 of the IPC. His actions were 'not only an affront to the normal sense of feminine decency but also an affront to the dignity' of Bajaj.[24] Gill's suggestion that he lacked any intention to outrage Mrs Bajaj's modesty was rejected. Gill should have known that he would outrage Bajaj's modesty if he slapped her bottom, especially since his actions were 'in the presence of a gathering comprising the elite of the society'.[25] In any event, there was nothing that suggested his actions involved an honest mistake or a slip. The court decisively rejected the argument that his conduct was so 'slight' that it could not be considered an offence, clarifying that 'under no circumstances' could his conduct be considered trivial.[26]

In conclusion, the court took the view that there was sufficient material for the magistrate to take cognizance of the offences, and directed him to conduct the trial of the case. The court made it clear that it did not intend to prejudge the merits of the case, and that the magistrate should make an independent decision. The Supreme Court considered that the appeal over the 'privileged' documents had become otiose by virtue of its decision, and did not decide the questions arising from that appeal. This is because the privileged documents issue arose in the context of Mr Bajaj's complaint. Since the Supreme Court had directed the magistrate to proceed with the trial in respect of Mrs Bajaj's complaint, and Mr Bajaj's complaint addressed the very same subject matter, his complaint was now redundant. Seven years after the party at the Kapur residence, the trial of K.P.S. Gill was ready to commence.

Despite the Supreme Court's decision, Gill remained relatively confident of his prospects in the trial. He was in transit to Himachal